



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

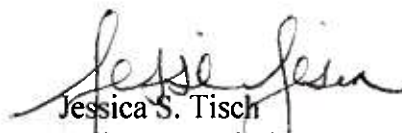
Re: Disciplinary Case No. 2024-30074 / PODS Case No. C-031235 regarding
Lieutenant Fernando Santos, Tax No. 942515

Date: April 24, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Lieutenant Santos frisked an individual without sufficient legal authority, used offensive language, and was discourteous towards the individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Lieutenant Santos will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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October 3, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Lieutenant Fernando Santos (Tax Reg #942515, DADS #2024-30074)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on August 8, 2025 and was endorsed by Assistant Deputy Commissioner Vanessa Facio-Lince stated on September 23, 2025.

On December 32, 2022 at 9:53pm, Lieutenant Santos and fellow officers were at the 145th Street subway station in Manhattan. In the station they encountered a civilian named [REDACTED]. Mr. [REDACTED] was yelling profanities and threatening other individuals. A decision was made to remove Mr. [REDACTED] from the station due to his conduct. Mr. [REDACTED] refused to leave the station, and the officers had to struggle with Mr. [REDACTED] to remove him. A determination was made that Mr. [REDACTED] was an emotionally disturbed person and an ambulance was called to take him to the hospital. During the incident, Lieutenant Santos ordered a subordinate officer to frisk Mr. [REDACTED]. Given that the officers had no reason to suspect that Mr. [REDACTED] had a weapon, this frisk was unlawful. Additionally, body-worn camera captured Lieutenant Santos making the statement that Mr. [REDACTED] was "going crazy." This statement was both discourteous and offensive and served no legitimate law enforcement function.

For the charge of offensive language, the disciplinary matrix lists a mitigated penalty of the forfeiture of one (1) vacation day, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of termination. The negotiated settlement deviates from NYPD disciplinary guidelines as to offensive language for the following reasons: Lieutenant Santos's nineteen years of service, and the fact that he received a score of 10 out of 10, well above standards, in his most recent evaluation.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board